

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 21, 2026, AT 8:30 A.M.

10. S-CV-0055620 HOUSTON, CHRISTOPHER v. FCA US

Plaintiff's Motion for an Order Enforcing Defendant's Compliance with C.C.P. § 998
Offer to Compromise

Plaintiff's motion is denied without prejudice because there is no proof of service in the record indicating plaintiff served the court's ex parte order on defendant as required by the court's May 1, 2026, order granting ex parte application.

11. S-CV-0055676 CONFIDENTIAL v. COLFAX HIGH SCHOOL

The demurrer is dropped from calendar as no moving papers were filed with the court.

12. S-CV-0055712 MORIN, MARLYS v. CITY OF ROSEVILLE

Defendant County of Placer's Demurrer to Plaintiff's First Amended Complaint

Preliminary Matters

Defendant's requests for judicial notice are granted.

Ruling on Demurrer

Defendant demurs to plaintiff Marlys Morin's entire first amended complaint on the grounds the complaint does not allege facts sufficient to state the first cause of action for general negligence/premises liability/dangerous condition of public property. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Defendant argues plaintiff does not allege facts sufficient to state the first cause of action for negligence/premises liability/dangerous condition of public property.

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Government Code Section 835 provides that

a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either:

- (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or
- (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.

Government Code Section 830, subdivision (a) clarifies that “‘Dangerous condition’” means a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.”

Plaintiffs alleging a dangerous condition of public property cause of action against public entities cannot generally allege what the condition is but instead “must specify in what manner the condition constituted a dangerous condition.” (*Summerfield v. City of Inglewood* (2023) 96 Cal.App.5th 983, 994.) To that end, “[a] dangerous condition exists when public property “is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself,” or it possesses physical characteristics in its design, location, features or relationship to its surroundings that endanger users.” (*Ibid.* [internal quotation marks omitted].)

One exception to a public entity’s liability for an alleged dangerous condition provided for by statute is the trail immunity pursuant to Government Code section 831.4. Notably,

A public entity, public employee, or a grantor of a public easement to a public entity for any of the following purposes, is not liable for an injury caused by a condition of:

- (a) Any unpaved road which provides access to fishing, hunting, camping, hiking, riding, including animal and all types of vehicular riding, water sports, recreational or scenic areas and which is not a (1) city street or highway or (2) county, state or federal highway or (3) public street or highway of a joint highway district, boulevard district, bridge and highway district or similar district formed for the improvement or building of public streets or highways.
- (b) Any trail used for the above purposes.

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(c) Any paved trail, walkway, path, or sidewalk on an easement of way which has been granted to a public entity, which easement provides access to any unimproved property, so long as such public entity shall reasonably attempt to provide adequate warnings of the existence of any condition of the paved trail, walkway, path, or sidewalk which constitutes a hazard to health or safety. Warnings required by this subdivision shall only be required where pathways are paved, and such requirement shall not be construed to be a standard of care for any unpaved pathways or roads.
(Gov. Code, § 831.4)

This immunity is absolute. (*Leyva v. Crockett & Co., Inc.* (2017) 7 Cal.App.5th 1105, 1109.)

At the demurrer stage, courts understand that “[a]lthough the purpose for which a ... trail [is] being used is ordinarily viewed as an issue of fact [citation], it becomes one of law if only one conclusion is possible. [Citation.] Thus, where the ‘[f]air inferences from the amended complaint’ are that plaintiff’s purpose for being within the Park was recreational, and ‘he was injured during the course of that activity ... the application of section 831.4 is established as a matter of law.’” (*Nealy v. County of Orange* (2020) 54 Cal.App.5th 594, 596.)

Whether property is considered a trail requires a consideration of factors such as “(1) the accepted definitions of the property, (2) the purpose for which the property is designed and used, and (3) the purpose of the immunity statute.” (*Nealy v. County of Orange* (2020) 54 Cal.App.5th 594, 603.) (*Carroll v. Los Angeles* (1997) 60 Cal.App.4th 606, 608.)

Here, when taking the factual allegations in the first amended complaint as true, defendant does not establish the area where plaintiff’s incident occurred is a trail such that trail immunity applies to preclude liability. Plaintiff thus alleges facts sufficient to state the negligence/premises liability/dangerous condition of public property cause of action against defendant.

Accordingly, the demurrer is overruled. Defendant shall file and serve an answer on or before **June 1, 2026**.

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